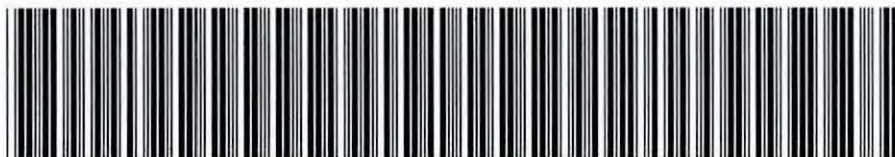


POSTED

11/19/07.pco

DI07-044

EWR D&I ANNOTATION



FAN-000001L064001DP91-4713

Artemis # : 000001L064001DP91

Record Created Date : 07/25/2007

Printed Date : 08/01/2007

Description : THE DRIVER OF THE SUBJECT VEHICLE WAS TRAVELING NORTHBOUND ON AN INTERSTATE HIGHWAY WHEN THE DRIVER APPLIED HIS BRAKES TO ADJUST FOR SLOWER MOVING TRAFFIC. THE SUBJECT VEHICLE SWERVED OUT OF HIS LANE INTO THE HOV LANE. A 1993 HONDA CBR 600 MOTORCYCLE STRUCK THE REAR OF THE SUBJECT VEHICLE. THE DRIVER OF THE MOTORCYCLE WAS EJECTED AND KILLED. THE SUBJECT VEHICLE CRASHED INTO A CONCRETE MEDIAN WALL. THE DRIVERS OF BOTH VEHICLES HAVE SEPARATE LEGAL COUNSEL, HOWEVER, NO SPECIFIC DEFECT ALLEGATIONS WERE INCLUDED WITH THEIR CLAIMS. THE POLICE REPORT INDICATES THAT THE DRIVER OF THE SUBJECT VEHICLE CAUSED THE CRASH. THE POLICE CHARGED THE DRIVER OF THE SUBJECT VEHICLE WITH UNSAFE TURNING AND UNSAFE SPEED FOR CONDITIONS. THE SUBJECT VEHICLE MANUFACTURER HAS NOT MADE AN ASSESSMENT OF THIS CRASH EVENT.

Print

Close

NA for
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U.S. Department
of Transportation
**National Highway
Traffic Safety
Administration**

1200 New Jersey Ave., S.E.
Washington, D.C. 20590

CERTIFIED MAIL
RETURN RECEIPT REQUESTED

MAY - 7 2007

Ms. Gay Kent
General Motors Corp.
Mail Code 480-210-G11
30001 Van Dyke
Warren, MI 48090

NVS-217ph
DI07-044

Dear Ms. Kent:

The Office of Defects Investigation (ODI) of the National Highway Traffic Safety Administration (NHTSA) has received information about certain death and injury incidents reported by General Motors (GM) in its light early warning report from 4th quarter of 2006. We are writing to request additional information about the following incidents:

Selected Death and Injury Incidents	
For Reporting Category: L	
For the following Sequence IDs: 30, 40, 88, 91, 103, 116, 135, 137, 140, 155, 221, 244, 246, 256, 257, 273, 274, 285, 295, 345, 360, 368, 401, 424, 436, 439	

Unless otherwise stated in the text, the following definitions apply to these information requests:

Incident: each incident identified in the table above.

Claim and Notice: shall have the meanings stated in 49 CFR §579.4(c). Claim and notice also specifically refer to the claim(s) and notice(s) that are the predicate for the early warning report on the incident.

Manufacturer: refers to GM.

Vehicle: the vehicle produced by GM that is identified in the claim or notice.

Tire: the tire produced by GM that is identified in the claim or notice.



VEHICLE SAFETY HOTLINE
888-327-4236

Equipment: the item of motor vehicle equipment produced by GM that is identified in the claim or notice.

Defect: means any failure, malfunction, lack of durability, or other problem in performance, construction, a component, or material of a motor vehicle or piece of motor vehicle equipment.

Document: "Document(s)" is used in the broadest sense of the word and shall mean all written, typed, graphic and photographic matter whatsoever (except autopsy photographs), be it in original, copy or electronic form. Any photograph originally produced in color must be provided in color and in electronic form, if possible. Furnish all documents whether verified by GM or not. If a document is not in the English language, provide both the original document and an English translation of the document. Document(s) includes all documents in GM custody and/or control.

Please provide numbered responses to the following inquiries, repeating the applicable request verbatim before each response. After GM's response to each request, identify the source of the information and indicate the last date the information was gathered. When documents are produced, the documents shall be produced in an identified, organized manner that corresponds to each pertinent information request. A separate response must be provided for each incident. Each response, document or attachment must be clearly identified with the incident Sequence ID (SeqID) number.

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.
2. Provide a copy of the Police Accident Report.
3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

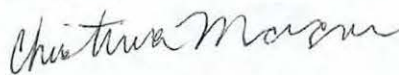
This letter is being sent to GM pursuant to 49 U.S.C. § 30166, which authorizes NHTSA to conduct any investigation that may be necessary to enforce Chapter 301 of Title 49 and to request reports and the production of things. It constitutes a new request for information. GM's failure to respond promptly and fully to this letter could subject GM to civil penalties pursuant to 49 U.S.C. § 30165 or lead to an action for injunctive relief pursuant to 49 U.S.C. § 30163. (Other remedies and sanctions are available as well.) Section 5(a) of the TREAD Act, codified at 49 U.S.C. § 30165(b), provides for civil penalties of up to \$5,000 per day, with a maximum of \$16,050,000 for a related series of violations, for failing or refusing to perform an act required under 49 U.S.C. § 30166. See 49 CFR 578.6 (as amended by 69 Fed. Reg. 57864 (Sept. 28, 2004)). This includes failing to respond to ODI information requests.

If GM claims that any of the information or documents provided in response to this information request constitute confidential commercial material within the meaning of 5 U.S.C. § 552(b) (4), or are protected from disclosure pursuant to 18 U.S.C. § 1905, GM must submit supporting information together with the materials that are the subject of the confidentiality request, in accordance with 49 CFR Part 512, as amended (69 Fed. Reg. 21409 et seq; April 21, 2004), to the Office of Chief Counsel (NCC-110), National Highway Traffic Safety Administration, 1200 New Jersey Avenue, S.E., Washington, D.C. 20590.

Your response to this letter, together with a copy of any confidentiality request, must be submitted to this office by **June 8, 2007**. Please include in your response the identification codes referenced on page one of this letter. If you are unable to provide all of the information requested within the time allotted, you must request an extension from me at (202) 366-4238, no later than five business days before the response due date. If all of the information requested by the original deadline is unavailable, you must submit a partial response by the original deadline with whatever information then is available, even if an extension is granted.

If you have any technical questions concerning this matter, please contact Mr. Leo Yon at (202) 366-7028 or by fax at (202) 366-7882.

Sincerely,



Christina Morgan, Chief
Early Warning Division
Office of Defects Investigation
Enforcement



GENERAL MOTORS NORTH AMERICA
Structure & Safety Integration

June 7, 2007

Ms. Christina Morgan, Chief
Early Warning Division
Office of Defects Investigation
National Highway Traffic Safety Administration
400 Seventh Street, S.W.
Washington, DC 20590

NVS-217ph
DI07-044

Dear Ms. Morgan:

This is General Motors' (GM) response to your inquiry dated May 7, 2007 regarding certain death and injury incidents reported by GM in its light vehicle early warning report from 4th quarter of 2006.

GM's response is comprised of 29 CDs for the incidents that are the subject of DI07-044.

Attachment "A" includes instructions for navigating the CD. Each CD, on its face, is identified by the NHTSA Sequence ID number, the Manufacturer's Unique ID number and the year, make and model of the vehicle involved in the incident, e.g., 256 210873110 - 625130 and 2004 Chevrolet Suburban 1500. When the CD is launched, this identification number appears again along with all of the documents (including photographs and videos) on the CD listed under "Filename." The first document listed under Filename is an index with the Request and Responses, e.g., identified as 256 210873110 - 625130 **_00_Request and Responses**. The index is numbered 1 through 3 to correspond to Inquiries 1 through 3, which are repeated verbatim below. The index also details whether any documents responsive to each inquiry were located.

For example, the first two Inquiries and Responses in the index for the CD are as follows:

DI07-044
256 210873110 - 625130
2004 CHEVROLET SUBURBAN 1500

Request for Information:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Document.

2. Provide a copy of the Police Accident Report.

Response: See Attached Document.

The remaining documents listed under Filename, reference the Manufacturer's Unique ID number along with the responsive Inquiry number. For example:

- 256 210873110 - 625130 **_01_1** - is the first document responsive to Inquiry no. 1.
256 210873110 - 625130 **_02_1** - is the first document responsive to Inquiry no. 2.

Product Investigations

Mail Code: 480-210-G11 • 30001 Van Dyke • Warren, MI 48090
DI07-044 Response.doc



Letter to Ms. Christina Morgan
 DI07-044 Response
 June 7, 2007
 Page 2 of 5

Your inquiries and our corresponding replies are as follows:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Document.

The table below lists the incidents that are the subject of DI07-044, by Reporting Category, Sequence ID, VIN and type of notice received by GM (as "notice" is commonly used, not as it is defined by 49 C.F.R. §579.4(c)). Incidents reported on GM's Early Warning Report Death and Injury worksheet fall into four categories: Lawsuit (LIT), NISM (Not In Suit Matters), Product Allegation Resolution (PAR), or Rumor (RMR). Lawsuit and NISM case types generally meet the §579.4(c) definition of "claim." PAR cases, in this context, refer to customer contacts in which an injury or fatality is alleged to have occurred as a result of a product defect, and are accompanied by a writing that may or may not meet the §579.4(c) definition of "claim" or "notice." Rumor incidents do not involve a written or verbal, implied or express allegation of a defect by a customer. Rather, rumor cases generally refer to incidents that GM learned of through the media, which were subsequently investigated further. As such, the document included in response to Inquiry 1 that can be found on the enclosed CD for the PAR and Rumor case listed in the table, may not be a claim or notice of the type generally defined as such by §579.4(c).

(26 Vehicles from the Light Vehicle Template)		
SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)	TYPE
✓ 30	1G6DP577770	NISM
✓ 40	1G6KD54Y05L	NISM
✓ 88	1G1AK52F657	RUMOR
✓ 91	1G1AK52F957	RUMOR
✓ 103	1G1AL15F877	NISM
✓ 116	1GNFG15T851	LIT
✓ 135	2G1WH52K349	NISM
✓ 137	2G1WH52K249	NISM
✓ 140	2G1WF52E159	LIT
✓ 155	1G1ND52J83M	NISM
✓ 221	2GCEC19T041	LIT
✓ 244	1GCHK29U23E	LIT
✓ 246	1GCHK23225F	LIT
✓ 256	1GNFK16T74J	LIT
✓ 257	3GNFK16T64G	RUMOR
✓ 273	1GNEC13V74J	LIT
✓ 274	1GNEC13TX5F	LIT
✓ 285	1GNDS13S822	LIT
✓ 295	1GNDT13S542	RUMOR
✓ 345	1GTEC14T74Z	LIT
✓ 360	1GKEC16Z14R	LIT
✓ 368	5GTDN136468	RUMOR
✓ 401	1G2ZG58B574	NISM
✓ 424	2G2WP552661	RUMOR
✓ 436	1G8AJ52F14Z	LIT
✓ 439	1G8AJ55F96Z	NISM

Letter to Ms. Christina Morgan
DI07-044 Response
June 7, 2007
Page 3 of 5

2. Provide a copy of the Police Accident Report.

Response: See Attached Documents.

3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

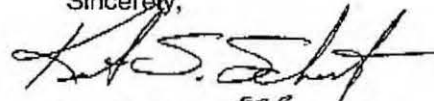
To date, General Motors' investigation of the alleged defect has not included an assessment of the cause(s) of each incident responsive to this request. Some incident reports may not contain sufficient reliable information to accurately assess cause. Assessments of claims may be attorney work product and/or privileged. Therefore, information and documents provided in this response, if any, consist only of non-attorney work product and/or non-privileged material for incidents that have been investigated and assessed.

GM claims that certain information, in documents that are part of rumor, claim and lawsuit files maintained by the GM Legal Staff and its outside counsel, is attorney work product and/or privileged. That information includes notes, memos, reports, photographs, and evaluations by attorneys (and by consultants, claims analysts, investigators, and engineers working at the request of attorneys). GM is producing responsive documents from its rumor, claim and lawsuit files that are neither attorney work product nor privileged and withholding those that are attorney work product and/or privileged.

This response was compiled and prepared by this office upon review of documents retrieved by GM and does not include documents generated or received subsequent to the searches.

Please contact me at if you require further information.

Sincerely,



Gay P. Kent
Director

Product Investigations

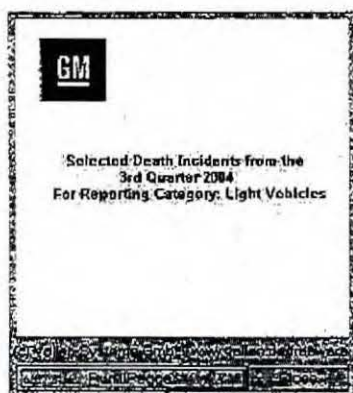
Enclosures: 29 Discs
Attachment A

Letter to Ms. Christina Morgan
DI07-044 Response
June 7, 2007
Page 4 of 5

Attachment A

Instructions for using CD Viewer

1. Insert the CD into the CD ROM drive; the CD will open automatically.
2. Click the "Run JPegger" button on the pop up window.



Letter to Ms. Christina Morgan
DI07-044 Response
June 7, 2007
Page 5 of 5

- Each image file may contain multiple pages. In the browsing mode use **Next Page Icon (Ctrl +PgDn)**, **Select Page Icon** or **Previous Page Icon (Ctrl +PgUp)** to browse through all of the pages within an image file. (Note: Some image files may contain up to 80 pages)
- By double-clicking on an image from the file list, a slide show will initiate, however, it will not automatically advance through the pages. Use **Ctrl +PgDn** or **Ctrl +PgUp** to browse through all of the pages within an image file. Left-clicking on an image, while in the slide show mode, will advance to the first page of the next image file.
- Right click on the image to see the image properties, as shown below. Image properties can also be used to view each page within the documents (Next page), or to view the next document within the file list (Next Image).
- If the image is difficult to view, the scale may be changed. Use **F5**, **F6**, **F7**, and **F8** to alternate between scales that fit the screen, or are 50%, 100%, and 200% of the image's original size.

OFFICE OF THE CLERK OF SUPERIOR COURT (Name, title and address) ERIC D. PARIS, ESQ., S/BA 147836 LAW OFFICES OF ERIC D. PARIS & ASSOCIATES 241 S. THOMAS STREET SUITE 403 CONGO, CALIFORNIA 91766 Telephone: 909-449-5127 FAX: 909-449-5126 E-mail: eric@erdp.com PLATINUM		SET 2 (Jury) CIVIL CASE COVER SHEET
SUPERIOR COURT FOR THE STATE OF CALIFORNIA INDO COUNTY		
CASE NAME: CALOGNA V. CHEVROLET		
CIVIL CASE COVER SHEET ☐ Unfiled ☒ Unfiled	Categories Case Descriptions ☐ Consumer ☐ Juvenile Filed with first appearance by defendant MCJ, Rules of Court, rule 181(f)	CASE NUMBER: JUDICIAL PANEL:
Please complete on file of filing paper.		
1. Check one box below for the case type that best describes this case:		
Auto/Traffic ☐ Auto (22) Other tort/damage (Personal Injury/Property Damage)/tort/contract/other ☐ Automobile (24) ☐ Personal Injury (24) ☐ Medical malpractice (24) ☐ Other tort/damage (22) Non-Auto/Non-Tort ☐ Breach of contract/contract dispute (27) ☐ Civil Rights (e.g., discrimination, other tort/damage) ☐ Defamation (e.g., libel, slander, invasion of privacy) (27) ☐ Real Estate ☐ Intellectual Property (27) ☐ Professional negligence (e.g., legal malpractice) (27) ☐ Other non-Auto/Non-Tort (22) Defendant: ☐ Municipal corporation (24)	☐ Other employment (24) Contract ☐ Breach of contract/discrimination (24) ☐ Breach of contract/contract dispute (27) ☐ Insurance coverage (24) ☐ Other contract (27) Real Property ☐ Eminent domain/condemnation (24) ☐ Wrongful eviction (24) ☐ Other civil property (e.g., joint tenancy) (27) Uninsured Tortfeasor ☐ Condemnation (21) ☐ Real estate (22) ☐ Drugs (24) Judicial Review ☐ Appeal/Rehearing (25) ☐ Public law/constitutional (27)	☐ Will of decedent (24) ☐ Other estate matter (24) Proceedings/Complex Civil Litigation Civil Rights of Court, nature, time, venue ☐ Construction related (24) ☐ Claims, insurance, tort, contract, other (24) ☐ Next page:
2. This case ☒ is not ☐ is not complete under rule 1800 of the California Rules regarding nonprejudicial summary judgment.		
a. ☒ Large number of separately represented parties ☐ Large number of parties b. ☒ Defendant moves practice raising difficult or novel issues that will be dispositive to resolve ☐ Contribution is in other capacity c. ☒ Defendant asserts of dispositive evidence ☐ Dispositive point		
3. Type of intervention sought (check all that apply): ☒ Necessary ☐ Preliminary, declaratory or injunctive relief		
4. Number of causes of action (include): ☐ None		
5. This case ☐ is not ☐ is not a class action suit.		
Case: JULY 3, 2003 ERIC D. PARIS, ESQ., S/BA 147836 (Printed Name & Title)		
• Plaintiff must file this cover sheet with the first papers filed in the action or proceedings in court that Plaintiff, Party, or Defendant and its/their Counsel (Civil Rules of Court, Rule 181) • This cover sheet is in addition to any cover sheet(s) required by local court rule. • This case is complete under rule 1800 of the California Rules of Court, per case rule number in the notice or proceeding. • Unless this is a complex case, this cover sheet should be saved for statistical purposes, and		
CIVIL CASE COVER SHEET		

**Step 7 Next File
(Image)**

Step 7 Next page

Step 8 Scale Image

Step 7 Image Properties

Product Investigations
Mail Code: 480-210-G11 • 30001 Van Dyke • Warren, MI 48090
DI07-044 Response.doc



DI07-044
91 210872529 – 516804
2005 CHEVROLET COBALT

Request for Information:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Document.

2. Provide a copy of the Police Accident Report.

Response: See Attached Document.

3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

Response: To date, General Motors' investigation of the alleged defect has not included an assessment of the cause(s) of each incident responsive to this request. Some incident reports may not contain sufficient reliable information to accurately assess cause. Assessments of claims may be attorney work product and/or privileged. Therefore, information and documents provided in this response, if any, consist only of non-attorney work product and/or non-privileged material for incidents that have been investigated and assessed.

GIBEAUT, MAHAN & BRISCOE
GREG W. GIBEAUT, Bar No. 82119
6701 Center Drive West, Suite 611
Los Angeles, California 90045
Telephone: (310) 410-2020
Facsimile: (310) 410-2010

Attorneys for Defendant,
Thomas C. Xander

SUPERIOR COURT OF CALIFORNIA
FOR THE COUNTY OF LOS ANGELES, SOUTHEAST DISTRICT

SCOT J. GRIFFIN, by and through his
Conservator, LYNEEN GRIFFIN,

Plaintiff,

vs.

THOMAS C. XANDER; ENTERPRISE RENT-
A-CAR,

Defendant.

Case No. VC 045 569

APPLICATION FOR GOOD FAITH
SETTLEMENT DETERMINATION AND
ORDER BARRING COMPLAINTS
AND/OR CROSS-COMPLAINTS FOR
EQUITABLE INDEMNITY AND/OR
CONTRIBUTION (C.C.P. § 877.6)

TO ALL PARTIES AND TO THEIR ATTORNEYS OF RECORD:

COMES NOW Defendant, THOMAS C. XANDER, and hereby applies to this court for an Order determining that the settlement between plaintiff, SCOT J. GRIFFIN, by and through his Conservator, Lyneen Griffin, and Defendant, THOMAS C. XANDER, constitutes a "good faith" settlement pursuant to Code of Civil Procedure, Section 877.6 (a) (2), thus barring any and all existing and/or future complaints and/or cross-complaints for equitable indemnity and/or contribution as to said defendant.

The settling parties are as follows: Plaintiff, SCOT GRIFFIN, by and through his Conservator, Lyneen Griffin, on the one hand, and Defendant, THOMAS C. XANDER, on the other hand.

1 ///

2 The basis, terms and amount of the settlement are as follows:

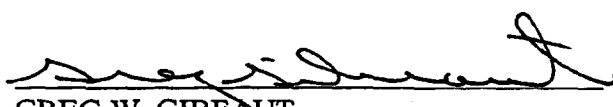
3 Plaintiff has agreed to execute a General Release and his heirs have agreed to execute a
4 Wrongful Death Waiver as to Defendant, Thomas Xander, and Plaintiff has further agreed to file a
5 Request for Dismissal, with prejudice, of the entire action on file herein, in exchange for the
6 payment to Plaintiff by Defendant of the sum of \$4,000,000.00, such payment to consist of the full
7 policy limits of \$2,300,000.00 under said defendant's applicable liability insurance coverage and
8 an additional personal contribution of \$1,700,000 by said defendant.

9 The settlement, which shall include any and all lien claims, is contingent upon the court
10 issuing an Order (1) determining the settlement between Plaintiff and Defendant to be in good faith
11 and barring any and all existing and/or future complaints and/or cross-complaints for equitable
12 indemnity and/or contribution against Defendant, and, (2) approving the settlement on behalf of
13 Plaintiff, who is subject to a conservatorship herein.

14 The attached Notice of Settlement, along with this Application and the (proposed) Order
15 thereon, have been served on all counsel of record and all potentially interested parties herein, by
16 certified mail, return receipt requested, as required by Code of Civil Procedure, Section 877.6 (a)
17 (2).

18
19 Dated: September 12, 2006

GIBEAUT, MAHAN & BRISCOE

20
21 By: 
22 GREG W. GIBEAUT
23 Attorneys for Defendant,
24 Thomas C. Xander

PROOF OF SERVICE

I am employed in the County of Los Angeles, State of California. I am over the age of 18 and not a party to the within action. My business address is 6701 Center Drive West, Suite 611, Los Angeles, California 90045.

On September 13, 2006, I served the within document(s) described as:

APPLICATION FOR GOOD FAITH SETTLEMENT DETERMINATION AND ORDER

on the interested parties in this action as stated below:

Randolph K. Gille, Esq.
Law Offices of Goldberg & Gille
131 North El Molino Avenue, Suite 310
Pasadena, CA 91101

General Motors Acceptance Corporation
c/o CT Corporation
818 West 7th Street
Los Angeles, CA 90017

Enterprise Rent-A-Car
c/o CT Corporation
818 West 7th Street
Los Angeles, CA 90017

☒

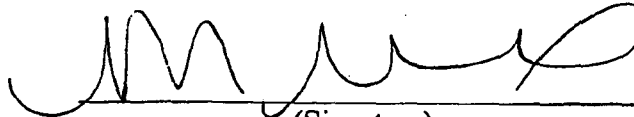
(BY MAIL) By placing a true copy of the foregoing document(s) in a sealed envelope addressed as set forth above. I placed each such envelope for collection and mailing following ordinary business practices. I am readily familiar with this Firm's practice for collection and processing of correspondence for mailing. Under that practice, the correspondence would be deposited with the United States Postal Service on that same day, with postage thereon fully prepaid at Los Angeles, California, in the ordinary course of business. I am aware that on motion of the party served, service is presumed invalid if postal cancellation date or postage meter date is more than one day after date of deposit for mailing in affidavit.

Executed on September 13, 2006, at Los Angeles, California.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Maria Nixon

(Type or print name)



(Signature)

1 **PROOF OF SERVICE**

2
3 I am employed in the County of Los Angeles, State of California. I am over the age of 18
4 and not a party to the within action. My business address is 6701 Center Drive West, Suite 611,
Los Angeles, California 90045.

5 On October 6, 2006, I served the within document(s) described as:

6 **APPLICATION FOR GOOD FAITH SETTLEMENT AND [PROPOSED] ORDER;**
7 **NOTICE OF SETTLEMENT**

8 on the interested parties in this action as stated below:

9 General Motors Corporation
c/o CT Corporation
818 West 7th Street
10 Los Angeles, CA 90017

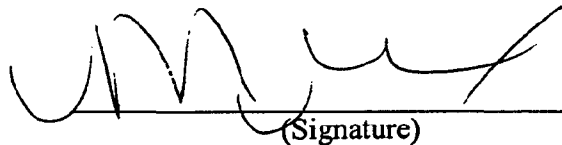
11
12 ☒

13 (BY CERTIFIED MAIL/RETURN RECEIPT REQUESTED) By placing a true copy of the
14 foregoing document(s) in a sealed envelope addressed as set forth above. I placed each
15 such envelope for collection and mailing following ordinary business practices. I am
16 readily familiar with this Firm's practice for collection and processing of correspondence for
17 mailing. Under that practice, the correspondence would be deposited with the United States
Postal Service on that same day, with postage thereon fully prepaid at Los Angeles,
California, in the ordinary course of business. I am aware that on motion of the party
served, service is presumed invalid if postal cancellation date or postage meter date is more
than one day after date of deposit for mailing in affidavit.

18 Executed on October 6, 2006, at Los Angeles, California.

19 I declare under penalty of perjury under the laws of the State of California that the
20 foregoing is true and correct.

21 Maria Nixon
22 (Type or print name)

23 
24 (Signature)

GIBEAUT, MAHAN & BRISCOE
GREG W. GIBEAUT, Bar No. 82119
6701 Center Drive West, Suite 611
Los Angeles, California 90045
Telephone: (310) 410-2020
Facsimile: (310) 410-2010

Attorneys for Defendant,
Thomas C. Xander

SUPERIOR COURT OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES, SOUTHEAST DISTRICT

SCOT J. GRIFFIN, by and through his
Conservator, LYNEEN GRIFFIN,

Plaintiff,

vs.

THOMAS C. XANDER, ENTERPRISE RENT-
A-CAR,;

Defendant.

) Case No. VC 045 569

) [PROPOSED] ORDER RE:
) APPLICATION FOR GOOD FAITH
) SETTLEMENT DETERMINATION
) BARRING COMPLAINTS AND/OR
) CROSS-COMPLAINTS FOR
) EQUITABLE INDEMNITY AND/OR
) CONTRIBUTION (C.C.P. § 877.6)

ON GOOD CAUSE SHOWN, and pursuant to authority of statute and case law of the

State of California, this court hereby orders that the settlement between Plaintiff, SCOT GRIFFIN,

by and through his Conservator, LYNEEN GRIFFIN, and Defendant, THOMAS C. XANDER,

was made and entered into in good faith. This court hereby further orders that this good faith

settlement determination acts to bar any other joint tortfeasor and/or co-obligor from asserting any

further claims against the settling tortfeasor and/or co-obligor for equitable indemnity and/or

contribution.

///

///

///

1 WHEREFORE, it is ordered that the Application for Determination of Good Faith
2 Settlement submitted by counsel for Defendant, THOMAS C. XANDER, be and hereby is granted
3 and that any further claims against the settling tortfeasor and/or co-obligor for equitable indemnity
4 and/or contribution be and hereby are barred.

5
6 DATED: _____

7 JUDGE OF THE SUPERIOR COURT
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Received
Norwalk Superior Court
SEP 15 2006

GIBEAUT, MAHAN & BRISCOE
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Los Angeles, California 90045
Telephone: (310) 410-2020
Facsimile: (310) 410-2010

Attorneys for Defendant,
Thomas C. Xander

SUPERIOR COURT OF CALIFORNIA
FOR THE COUNTY OF LOS ANGELES, SOUTHEAST DISTRICT

SCOT J. GRIFFIN, by and through his
Conservator, LYNEEN GRIFFIN,

Plaintiff,

vs.

THOMAS C. XANDER; ENTERPRISE RENT-
A-CAR,,

Defendant.

Case No. VC 045 569

NOTICE OF SETTLEMENT
(CCP § 877.6)

TO THE HONORABLE COURT AND TO ALL INTERESTED PARTIES AND TO THEIR
ATTORNEYS OF RECORD HEREIN:

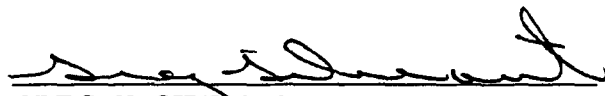
PLEASE TAKE NOTICE that Plaintiff, SCOT GRIFFIN, by and through his
Conservator, LYNEEN GRIFFIN, and Defendant, THOMAS C. XANDER, have entered into a
settlement whereby Defendant has agreed to pay the sum of \$4,000,000.00 to Plaintiff in exchange
for a full and final release of any and all claims, including a release of any liens and a waiver of any
potential claims for wrongful death by or on behalf of Plaintiff's heirs, as well as a dismissal, with
prejudice, of the entire action. Said payment shall consist of the full policy limits of \$2,300,000.00
under said defendant's applicable liability insurance coverage and an additional personal (excess)
contribution of \$1,700,000.00 by said defendant.

/ / /

1 The aforesaid settlement was entered into pursuant to negotiations and evaluations of
2 potential liabilities and exposures, and is contingent upon the court's granting of an Order (1)
3 determining the settlement to be in good faith and barring any claims for equitable indemnity
4 and/or contribution against the settling defendant pursuant to Code of Civil Procedure, Section
5 877.6, and (2) approving the settlement as to the plaintiff, who is subject to a conservatorship.
6

7 Dated: September 12, 2006

GIBEAUT, MAHAN & BRISCOE

8
9 By: 

GREG W. GIBEAUT
Attorneys for Defendant,
Thomas C. Xander

1 PROOF OF SERVICE

2
3 I am employed in the County of Los Angeles, State of California. I am over the age of 18
4 and not a party to the within action. My business address is 6701 Center Drive West, Suite 611,
Los Angeles, California 90045.

5 On September 13, 2006, I served the within document(s) described as:

6 NOTICE OF SETTLEMENT

7 on the interested parties in this action as stated below:

8 Randolph K. Gille, Esq.
9 Law Offices of Goldberg & Gille
131 North El Molino Avenue, Suite 310
Pasadena, CA 91101

10 General Motors Acceptance Corporation
11 c/o CT Corporation
818 West 7th Street
12 Los Angeles, CA 90017

Enterprise Rent-A-Car
c/o CT Corporation
818 West 7th Street
Los Angeles, CA 90017

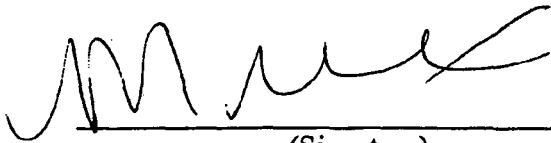
13 ☒

14 (BY MAIL) By placing a true copy of the foregoing document(s) in a sealed envelope
15 addressed as set forth above. I placed each such envelope for collection and mailing
16 following ordinary business practices. I am readily familiar with this Firm's practice for
collection and processing of correspondence for mailing. Under that practice, the
17 correspondence would be deposited with the United States Postal Service on that same day,
with postage thereon fully prepaid at Los Angeles, California, in the ordinary course of
18 business. I am aware that on motion of the party served, service is presumed invalid if
postal cancellation date or postage meter date is more than one day after date of deposit for
mailing in affidavit.

19 Executed on September 13, 2006, at Los Angeles, California.

20 I declare under penalty of perjury under the laws of the State of California that the
21 foregoing is true and correct.

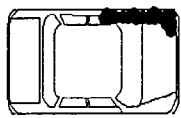
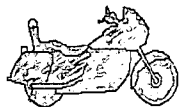
22 Maria Nixon
23 (Type or print name)

24 
25 (Signature)

TRAFFIC COLLISION REPORT

CHP 555 CARS Page 1 (Rev 1-03) OPI 001

Page 1 of 9

SPECIAL CONDITIONS		NUMBER INJURED 1	HIT & RUN FELONY	CITY NORWALK		JUDICIAL DISTRICT DOWNEY COURT		LOCAL REPORT NUMBER				
		NUMBER KILLED 0	HIT & RUN MISDEMEANOR	COUNTY LOS ANGELES		REPORTING DISTRICT BEAT 651		10-294				
LOCATION	COLLISION OCCURRED ON: I-605 N/B (SAN GABRIEL FREEWAY)					MO 10/13/2005	DAY YEAR	TIME (2400) 0929	NCIC # 9550	OFFICER I.D. 017529		
	MILEPOST INFORMATION: 800 FEET SOUTH OF 605 LA 06.81					DAY OF WEEK THURSDAY		TOW AWAY ☒ YES ☐ NO	PHOTOGRAPHS BY: SGT WOOD #11577			
	AT INTERSECTION WITH: ☒ OR: 800 FEET SOUTH OF ROSECRANS AVE.					STATE HWY REL ☒ YES ☐ NO						
PARTY 1	DRIVER'S LICENSE NUMBER		STATE VA	CLASS F	AIR BAG M	SAFETY EQUIP. G		VEH. YEAR 2005	MAKE / MODEL / COLOR CHEV COLBALT RED	LICENSE NUMBER	STATE CA	
DRIVER ☒	NAME(FIRST, MIDDLE, LAST)					OWNER'S NAME ☐ SAME AS DRIVER						
PEDES- TRIAN	STREET ADDRESS					ENTERPRISE						
PARKED VEHICLE	CITY / STATE / ZIP VIENNA VA					OWNER'S ADDRESS ☐ SAME AS DRIVER					4100 E. DONALD DOUGLAS LONG BEACH CA 90801	
BICY- CLIST	SEX M	HAIR BRN	EYES BRN	HEIGHT	WEIGHT	BIRTHDATE Mo Day Year	RACE W	DISPOSITION OF VEHICLE ON ORDERS OF: ☐ OFFICER ☒ DRIVER ☐ OTHER				
OTHER	HOME PHONE		BUSINESS PHONE		BALCACERES TOW - (562)867-8062							
				UNKNOWN		PRIOR MECH. DEFECTS ☒ NONE APP. ☐ REFER TO NARRATIVE						
						VEHICLE IDENTIFICATION NUMBER:						
						VEHICLE TYPE 01						
						DESCRIBE VEHICLE DAMAGE ☐ UNK ☐ NONE ☐ MINOR ☒ MOD ☐ MAJOR ☐ ROLL-OVER						
						SHADE IN DAMAGED AREA 						
						CA _____ DOT _____						
						CAL-T _____ TCP/PSC _____ MC/MX _____						
PARTY 2	DRIVER'S LICENSE NUMBER		STATE CA	CLASS M	AIR BAG P	SAFETY EQUIP. W		VEH. YEAR 1993	MAKE / MODEL / COLOR HOND CBR 600 WHI/BLU	LICENSE NUMBER	STATE CA	
DRIVER ☒	NAME(FIRST, MIDDLE, LAST)					OWNER'S NAME ☒ SAME AS DRIVER						
PEDES- TRIAN	STREET ADDRESS					OWNER'S ADDRESS ☒ SAME AS DRIVER						
PARKED VEHICLE	CITY / STATE / ZIP TEMPLE CITY CA					DISPOSITION OF VEHICLE ON ORDERS OF: ☒ OFFICER ☐ DRIVER ☐ OTHER						
BICY- CLIST	SEX M	HAIR BLK	EYES BRN	HEIGHT 5-10	WEIGHT 180	BIRTHDATE Mo Day Year	RACE O	BALCACERES TOW - (562)867-8062				
OTHER	HOME PHONE		BUSINESS PHONE		PRIOR MECHANICAL DEFECTS ☒ NONE APP. ☐ REFER TO NARRATIVE							
				UNKNOWN		VEHICLE IDENTIFICATION NUMBER:						
						VEHICLE TYPE 02						
						DESCRIBE VEHICLE DAMAGE ☐ UNK ☐ NONE ☐ MINOR ☐ MOD ☒ MAJOR ☐ ROLL-OVER						
						SHADE IN DAMAGED AREA 						
						CA _____ DOT _____						
						CAL-T _____ TCP/PSC _____ MC/MX _____						
PARTY 3	DRIVER'S LICENSE NUMBER		STATE	CLASS	AIR BAG	SAFETY EQUIP.		VEH. YEAR	MAKE / MODEL / COLOR	LICENSE NUMBER	STATE	
DRIVER	NAME(FIRST, MIDDLE, LAST)					OWNER'S NAME ☐ SAME AS DRIVER						
PEDES- TRIAN	STREET ADDRESS					OWNER'S ADDRESS ☐ SAME AS DRIVER						
PARKED VEHICLE	CITY / STATE / ZIP					DISPOSITION OF VEHICLE ON ORDERS OF: ☐ OFFICER ☐ DRIVER ☐ OTHER						
BICY- CLIST	SEX	HAIR	EYES	HEIGHT	WEIGHT	BIRTHDATE Mo Day Year	RACE	PRIOR MECHANICAL DEFECTS ☐ NONE APP. ☐ REFER TO NARRATIVE				
OTHER	HOME PHONE		BUSINESS PHONE		VEHICLE IDENTIFICATION NUMBER:							
						VEHICLE TYPE						
						DESCRIBE VEHICLE DAMAGE ☐ UNK ☐ NONE ☐ MINOR ☐ MOD ☐ MAJOR ☐ ROLL-OVER						
						SHADE IN DAMAGED AREA						
						CA _____ DOT _____						
						CAL-T _____ TCP/PSC _____ MC/MX _____						
PREPARER'S NAME A. NORRIS 017529		DISPATCH NOTIFIED ☒ YES ☐ NO ☐ N/A		REVIEWER'S NAME BETANCOURT 17678		DATE REVIEWED 10-18-05						

TA000093422

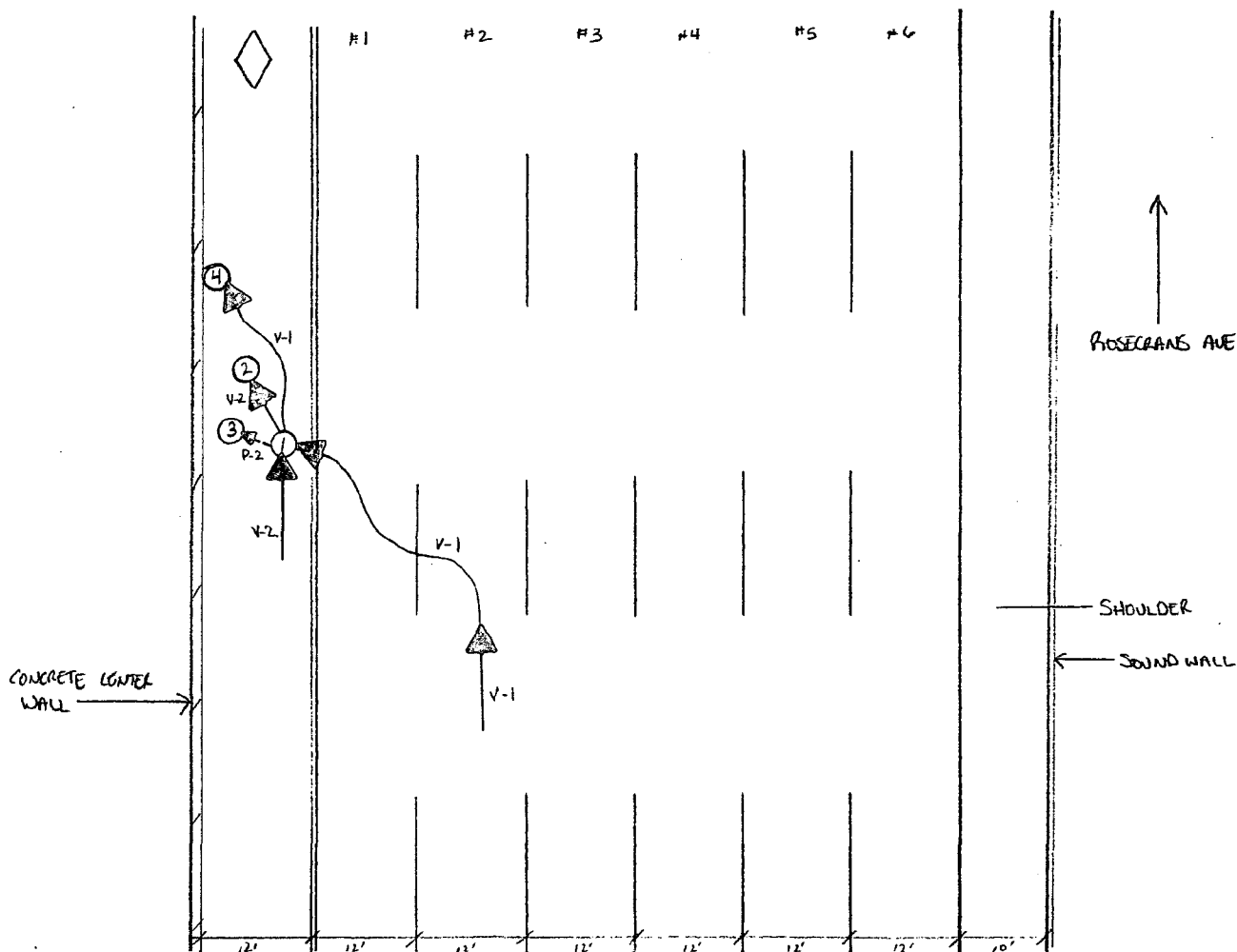
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DATE OF COLLISION (MO. DAY YEAR)	TIME (2400)	NCIC #	OFFICER I.D.	NUMBER
10-13-05	0939	9550	17529	

ALL MEASUREMENTS ARE APPROXIMATE AND NOT TO SCALE UNLESS STATED (SCALE =)



I - 605 NORTH BOUND



PREPARED BY	I.D. NUMBER	MO. DAY YEAR	REVIEWER'S NAME	MO. DAY YEAR
A. NORRIS	17529	10-13-05		

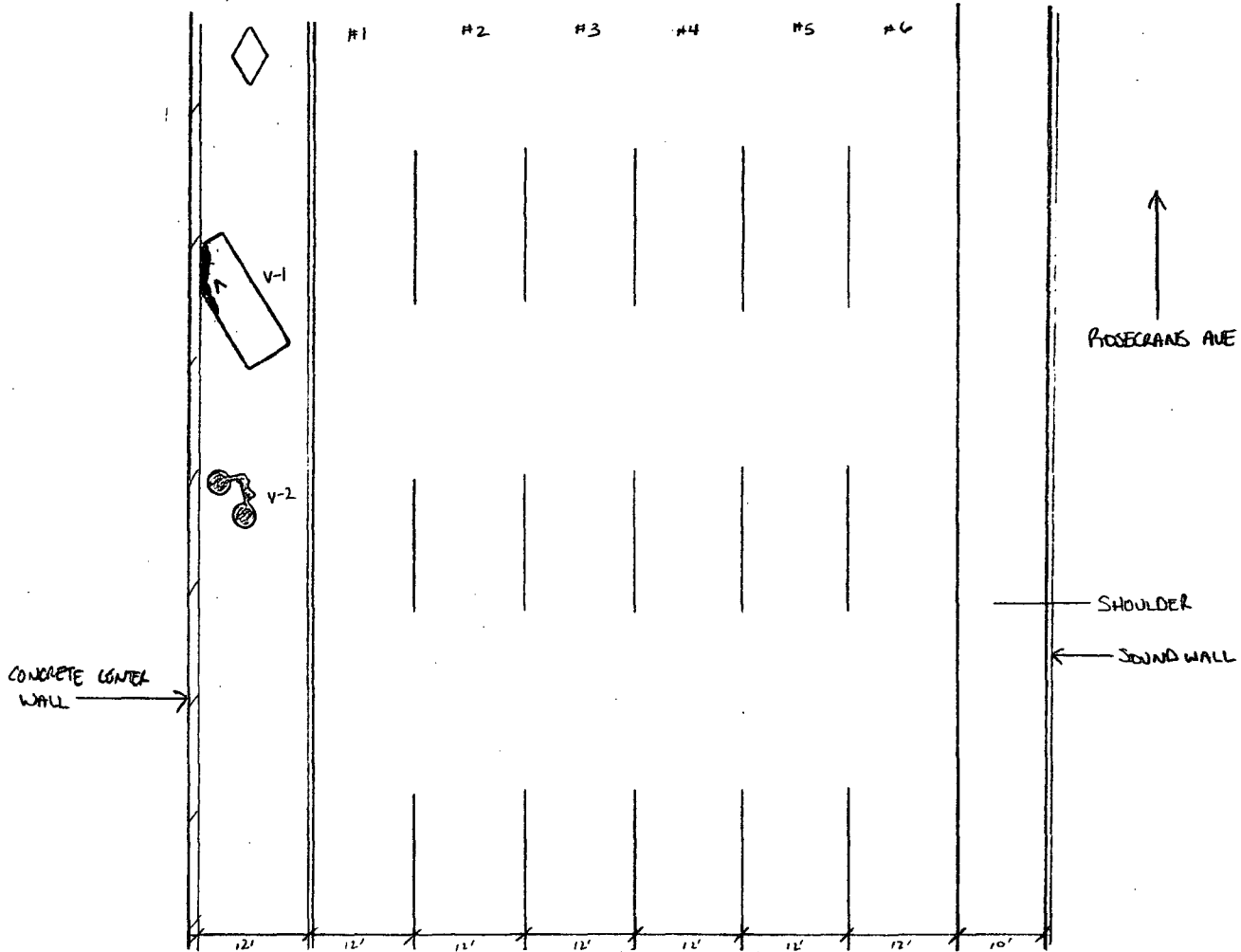
DATE OF COLLISION (MO. DAY YEAR) 10/13/2005				TIME(2400) 0929		NCIC # 9550		OFFICER I.D. 017529				NUMBER 10-294					
WITNESS ONLY	PASSENGER ONLY	AGE	SEX	EXTENT OF INJURY('X' ONE)				INJURED WAS ('X' ONE)					PARTY NUMBER	SEAT POS.	AIR BAG	SAFETY EQUIP.	EJECTED
				FATAL INJURY	SEVERE INJURY	OTHER VISIBLE INJURY	COMPLAINT OF PAIN	DRIVER	PASS.	PED.	BICYCLIST	OTHER					
☐ #	☐	26	M	☐	☒	☐	☐	☒	☐	☐	☐	☐	2	1	P	W	1
NAME / D.O.B. / ADDRESS [REDACTED] TEMPLE CITY CA [REDACTED]														TELEPHONE [REDACTED]			
(INJURED ONLY) TRANSPORTED BY: AMR 99-408								TAKEN TO: ST. FRANCIS MEDICAL CENTER									
DESCRIBE INJURIES: MULTIPLE TRAUMA. BOTH ARMS, LEGS, HEAD, AND SPLEEN.																	
																☐ VICTIM OF VIOLENT CRIME NOTIFIED	
☒ #	☒	[REDACTED]	F	☐	☐	☐	☐	☐	☐	☐	☐	☐	1	3	M	G	0
NAME / D.O.B. / ADDRESS [REDACTED] VIENNA VA [REDACTED]														TELEPHONE [REDACTED]			
(INJURED ONLY) TRANSPORTED BY:								TAKEN TO:									
DESCRIBE INJURIES:																	
																☐ VICTIM OF VIOLENT CRIME NOTIFIED	
☒ #	1	☐	[REDACTED]	M	☐	☐	☐	☐	☐	☐	☐	☐					
NAME / D.O.B. / ADDRESS [REDACTED] PARAMOUNT CA [REDACTED]														TELEPHONE [REDACTED]			
(INJURED ONLY) TRANSPORTED BY:								TAKEN TO:									
DESCRIBE INJURIES:																	
																☐ VICTIM OF VIOLENT CRIME NOTIFIED	
☒ #	2	☐	[REDACTED]	F	☐	☐	☐	☐	☐	☐	☐	☐					
NAME / D.O.B. / ADDRESS [REDACTED] NORWALK CA [REDACTED]														TELEPHONE [REDACTED]			
(INJURED ONLY) TRANSPORTED BY:								TAKEN TO:									
DESCRIBE INJURIES:																	
																☐ VICTIM OF VIOLENT CRIME NOTIFIED	
☐ #	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐					
NAME / D.O.B. / ADDRESS [REDACTED]														TELEPHONE [REDACTED]			
(INJURED ONLY) TRANSPORTED BY:								TAKEN TO:									
DESCRIBE INJURIES:																	
																☐ VICTIM OF VIOLENT CRIME NOTIFIED	
☐ #	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐					
NAME / D.O.B. / ADDRESS [REDACTED]														TELEPHONE [REDACTED]			
(INJURED ONLY) TRANSPORTED BY:								TAKEN TO:									
DESCRIBE INJURIES:																	
																☐ VICTIM OF VIOLENT CRIME NOTIFIED	
PREPARER'S NAME A. NORRIS																	
I.D. NUMBER 017529				MO. DAY YEAR 10/13/2005				REVIEWER'S NAME				MO. DAY YEAR					

DATE OF COLLISION (MO. DAY YEAR) 10-13-05	TIME (2400) 0939	NCIC # 9550	OFFICER I.D. 17529	NUMBER
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ALL MEASUREMENTS ARE APPROXIMATE AND NOT TO SCALE UNLESS STATED (SCALE =)



I - 605 NORTH BOUND



PREPARED BY A. NORRIS	I.D. NUMBER 17529	MO. DAY YEAR 10-13-05	REVIEWER'S NAME	MO. DAY YEAR
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DATE OF INCIDENT/OCCURRENCE 10-13-05	TIME (2400) 0929	NCIC NUMBER 9550	OFFICER I.D. NUMBER 17529	NUMBER
X ONE ☒ Narrative ☐ Supplemental	*X* ONE ☒ Collision report ☐ Other:	TYPE SUPPLEMENTAL (*X* APPLICABLE) ☐ BA update ☐ Hazardous materials ☐ Fatal ☐ School Bus ☐ Hit and run update ☐ Other:		

PHYSICAL EVIDENCE LEGEND

All measurements were taken from the south roadway edge of Rosecrans Ave and the east of the west roadway edge of northbound I-605.

All measurements were taken with a roll meter.

POINTS OF REST:

Vehicle #1 (Chevy)

Right front tire was located 752 feet south of the south roadway edge of Rosecrans Ave and 3 feet east of the west roadway edge of northbound I-605.

Right rear tire was located 760 feet south of the south roadway edge of Rosecrans Ave and 8 feet east of the west roadway edge of northbound I-605.

Vehicle #2 (Honda)

Front wheel was located 777 feet south of the south roadway edge of Rosecrans Ave and 1 feet east of the west roadway edge of northbound I-605.

Rear wheel was located 780 feet south of the south roadway edge of Rosecrans Ave and 5 feet east of the west roadway edge of northbound I-605.

PREPARER'S NAME AND I.D. NUMBER A. Norris #17529	DATE 10-13-05	REVIEWER'S NAME	DATE
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DATE OF INCIDENT/OCCURRENCE 10-13-05	TIME (2400) 0929	NCIC NUMBER 9550	OFFICER I.D. NUMBER 17529	NUMBER
X ONE ☒ Narrative ☐ Supplemental	*X* ONE ☒ Collision report ☐ Other:	TYPE SUPPLEMENTAL (*X* APPLICABLE) ☐ BA update ☐ Hazardous materials ☐ Fatal ☐ School Bus ☐ Hit and run update ☐ Other:		

FACTS:

NOTIFICATION:

At 0930 hours, I received a call from CHP dispatch of a traffic collision with an ambulance responding. I responded from Alondra Blvd west of I-605 and arrived on scene at approximately 0935 hours.

All times, speeds, and measurements are approximate. Measurements were taken by roll meter.

SCENE:

At the scene of this collision, northbound I-605 south of Rosecrans Ave, is a six lane plus one H.O.V. lane, straight, flat, level, concrete in construction full freeway. Traffic lanes are delineated by painted white lines and raised reflector markers. The H.O.V lane is separated from the general traffic lanes by double yellow lines. Northbound I-605 south of Rosecrans Ave is bordered to the west by a concrete divider wall and bordered to the east by a solid white line.

PARTIES/VEHICLES:

P-1 () was contacted as he was standing within the carpool lane of northbound I-605 south of Rosecrans Ave. He was identified by his valid State of Virginia Drivers License. He was determined to be the driver by his own admission.

V-1 (Ford) was found facing in a northwesterly direction, northbound on I-605 south of Rosecrans Ave, with its left front end against the center concrete wall. V-1 sustained moderate damage to its front and left side including, but not limited to, the front bumper, left front headlight, left side mirror, left front wheel, left front fender, hood, and left side doors.

Upon my arrival, P-2 () was found unconscious in the H.O.V lane of northbound I-605 south of Rosecrans Ave. He was identified by several pieces of identification which were in a backpack he was carrying. He did not have a drivers license on his person, but when I responded to St Francis Medical Center, his name, address, and date of birth was verified by his mother, . I ran this information through CHP Dispatch and P-2's information returned as a valid California motorcycle license. He was determined to be the driver by the injuries he sustained.

V-2 (Honda) was found on its left side, facing in a northwesterly direction, within the H.O.V lane of northbound I-605 south of Rosecrans Ave. V-2 sustained major damage to the entire vehicle.

No prior defects were observed or noted.

PREPARER'S NAME AND I.D. NUMBER A. Norris #17529	DATE 10-13-05	REVIEWER'S NAME	DATE
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DATE OF INCIDENT/OCCURRENCE 10-13-05	TIME (2400) 0929	NCIC NUMBER 9550	OFFICER I.D. NUMBER 17529	NUMBER
☒ Narrative ☐ Supplemental	☒ Collision report ☐ Other:	TYPE SUPPLEMENTAL ("X" APPLICABLE) ☐ BA update ☐ Hazardous materials ☐ Fatal ☐ School Bus ☐ Hit and run update ☐ Other:		

PHYSICAL EVIDENCE:

Damage to V-1 and V-2.

STATEMENTS:

P-1 () related he was driving in V-1 (Chevy), northbound on I-605, in the #2 lane, at 60-65 mph, south of Rosecrans Ave. P-1 stated, "I saw red lights ahead so I started to slow for traffic. Suddenly my car turned to the left and hit the wall. Then the motorcycle came along and hit me."

P-2 () was riding V-2 (Honda), northbound on I-605, in the H.O.V lane, at an undetermined speed, south of Rosecrans Ave. A statement was not obtained from P-2 due to the extent of his injuries.

W-1 () was driving his vehicle just ahead of the traffic collision. W-1 stated, "I had came from the (I) 405 and got on the (I) 605 heading northbound. Once I got to about Alondra, traffic started to slow to about 35-40 mph. Then, just south of Rosecrans, the speed of traffic was about 5 mph. This is pretty normal because I drive this way every day. I heard screeching. I looked in my rear view and drivers side mirror and saw the red car swerve from the #2 lane into the carpool lane into the path of the motorcycle. From there, I just saw debris flying and people starting to pull over into the carpool lane. I then called you guys (CHP)".

W-2 () was a passenger in a vehicle in the #2 lane several cars behind this traffic collision. W-2 stated, "I saw the red car began to swerve. It then went over into the carpool lane into the path of the motorcycle. He just didn't have time to stop or do anything. He just rammed right into the car. Then the guy flew off and hit the floor."

OPINIONS AND CONCLUSIONS:

SUMMARY:

P-1 was driving in V-1 northbound on I-605, in the #2 lane, at 65 mph, south of Rosecrans Ave. P-2 was driving V-2 northbound on I-605, in the H.O.V lane, at an undetermined speed, south of Rosecrans Ave. P-1 saw traffic slowing ahead and applied V-1's brakes. V-1 began to swerve out of control. For an unknown reason, V-1 came out of the #2 lane in a northwesterly direction, across the #1 lane, and into the H.O.V lane, directly into the path of V-2. V-2 impacted the left side of V-1. P-2 was ejected from V-2 and both impacted the concrete roadway. V-1 continued in a northwesterly direction and impacted the concrete center wall.

The summary was based on statements and vehicle damage.

PREPARER'S NAME AND I.D. NUMBER A. Norris #17529	DATE 10-13-05	REVIEWER'S NAME	DATE
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DATE OF INCIDENT/OCCURRENCE 10-13-05	TIME (2400) 0929	NCIC NUMBER 9550	OFFICER I.D. NUMBER 17529	NUMBER
X ONE ☒ Narrative ☐ Supplemental	*X* ONE ☒ Collision report ☐ Other:	TYPE SUPPLEMENTAL ("X" APPLICABLE) ☐ BA update ☐ Hazardous materials ☐ Fatal ☐ School Bus ☐ Hit and run update ☐ Other:		

AREAS OF IMPACTS(AOI'S):

AOI #1 (V-1 vs V-2) was located 800 ft south of the south edge of Rosecrans Ave and 9 ft east of the west edge of northbound I-605.

AOI #2 (V-2 vs Concrete Roadway) was located 790 ft south of the south edge of Rosecrans Ave and 7 ft east of the west edge of northbound I-605.

AOI #3 (P-2 vs Concrete Roadway) was located 790 ft south of the south edge of Rosecrans Ave and 9 ft east of the west edge of northbound I-605.

AOI #4 (V-1 vs Concrete Center Wall) was located 750 ft south of the south edge of Rosecrans Ave and 1 ft west of the west edge of northbound I-605.

These AOI's were based on statements and vehicle damage.

CAUSE:

P-1 () caused this collision by driving V-1 (Chevy) in violation of section 22107 V.C (Unsafe Turning Movement).

An associated factor in this collision was P-1 driving V-1 in violation of section 22350 V.C (Unsafe Speed for the Conditions).

The Cause was determined by statements and vehicle damage.

PREPARER'S NAME AND I.D. NUMBER A. Norris #17529	DATE 10-13-05	REVIEWER'S NAME	DATE
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